

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 17, 2026, AT 8:30 A.M.

5. M-CV-0091100 AMERICAN EXPRESS NATIONAL V. RODE, TERESA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$13,875.08 in unpaid principal plus \$586.01 in court costs for a total judgment of \$14,461.09.

6. M-CV-0096239 ROCKLIN SIERRA APT II V. TATE, TREYVON

Status Conference re: Appointment of Counsel

Appearances of the parties are required at the hearing.

7. M-CV-0096921 MIDLAND CREDIT MANAGEMENT v. LAGIER, LES

Defendant's Motion to Compel Binding Arbitration and Stay Proceedings

Defendant moves to compel plaintiff to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the